

		Failure to comply with the court's orders may result in sanctions pursuant to Code of Civil Procedure section 177.5. Clerk to give notice.
7	Kim vs. Kim 30-2025- 01517838-CU- FR-CJC	Demurrer to First Amended Complaint Defendants Kum Ok Kim and Shinae Park's Demurrer to the First Amended Complaint is SUSTAINED without leave to amend as to the second cause of action. The demurrer is OVERRULED as to the first and third causes of action. Defendant Kim demurs to the first and second causes of action for promissory estoppel and quiet title, respectively. Defendant Park demurs to the third cause of action for conversion. Defendants' request to strike Plaintiffs' claim for punitive damages and attorney's fee are not proper grounds for demurrer. (Code Civ. Proc., § 430.10.) <u>First Cause of Action – Promissory Estoppel</u> Plaintiffs adequately plead promissory estoppel. Plaintiffs allege a clear promise that defendant Kim would give Plaintiffs an interest in the property in exchange for their caregiving services. (FAC, ¶¶ 6-7, 12, 30.) Plaintiffs relied on this promise to their substantial detriment by contributing to the household expenses and providing fulltime care for the ailing father that ultimately required them to close their business. (FAC, ¶¶ 8-11, 31.) Plaintiffs also allege the resulting damages. (FAC, ¶ 33.) Whether the evidence clearly and satisfactorily proves an equitable exception to the statute of frauds, including promissory estoppel, is not properly decided at the pleading stage. <u>Second Cause of Action – Quiet Title</u> Plaintiffs have alleged they have constructive or equitable title based on their promissory estoppel claim. (FAC, ¶35.) They do not allege fraud. Thus, their quiet title claim fails to allege a basis for their title. (See <i>Liberty National Enterprises, L.P. v. Chicago Title Ins. Co.</i> (2013) 217 Cal.App.4th 62, 81 [cleaned up].) Plaintiffs allege a constructive trust arose in their favor as a result of defendant Kim's promise. (FAC, ¶ 36.) However, this allegation does not save the claim. A constructive trust requires either a conveyance of property induced by fraud, or a conveyance coupled with

		a confidential relationship and a subsequent repudiation of an oral promise to hold the property in trust. (See <i>Orella v. Johnson</i> (1952) 38 Cal.2d 693, 696.) Plaintiffs do not allege any conveyance occurred. <u>Third Cause of Action - Conversion</u> Plaintiffs adequately plead a conversion claim against Defendant Park. Plaintiffs allege their ownership of specific sums of money and personal property. (FAC, ¶¶ 16, 39.) Defendants Park and Kim wrongfully exercised control over the money and property by taking them. (FAC, ¶¶ 18, 40.) Plaintiffs also allege damages. (FAC, ¶ 41.) Defendants are ORDERED to file an answer within 10 days. Defendants to give notice.
8	Grigsby vs. Steele Canyon Golf Course Corp. 30-2024-01435496-CU-PO-CJC	Demurrer to Third Amended Complaint The Demurrer to Plaintiff's Third Amended Complaint (TAC) by Defendants Steele Canyon Golf Club Corporation d.b.a. Dove Canyon Golf Club and Pacific Golf Management; SJS Tomorrow, LLC; SJD, LLC; Dove Canyon Golf Club, LLC; Lawrence Taylor; Colin Radchenko; Chloe Kim; John Glasoe; and Gabe Ramos is SUSTAINED without leave to amend in part and OVERRULED in part as set out below. In opposition, Plaintiff states the following parties will be dismissed without prejudice: Dove Canyon Golf Club, LLC will be dismissed without prejudice from all causes of action except the fifth cause of action for premises liability; Lawrence Taylor and Colin Radchenko will be dismissed without prejudice. The TAC is dismissed as to Lawrence Taylor and Colin Radchenko. The remaining Defendants demur to all eight causes of action in the TAC. <u>Procedural History:</u> The Court previously sustained Defendants' demurrers to the first and second amended complaints, which asserted causes of action arising from Plaintiff's workplace injuries, on grounds including workers compensation exclusivity. (See 2/13/26 and 6/16/25 Minute Orders.) The 2/13/26 order sustained with leave to amend stating, "this will likely be plaintiff's last opportunity to amend."